



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 8, 2020

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 201804810 regarding Sergeant Carl Scogmanillo, Tax No. [REDACTED] (DADS No. 2019-21233)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this case. Sergeant Scogmanillo authorized the arrest of two individuals who resided at a location where a search warrant was being executed, and where a loaded firearm was recovered. The warrant was obtained after a complainant informed responding officers that she had been menaced with a firearm by a previously apprehended individual and had seen the firearm being placed inside a sofa at the residence. Upon securing the residence and obtaining the warrant, a search was conducted and Sergeant Scogmanillo authorized the arrest of the two individuals who were in the common area of the residence where the couch and firearm were located. The decision to arrest the two individuals was made in good faith, although additional investigation at the scene could have led to a different decision. While the Kings County District Attorney's Office subsequently decided to exercise its discretion to decline to prosecute the two individuals, based on its determination that there was insufficient evidence to prosecute the arrests, this use of prosecutorial discretion does not function to de-legitimize the decision to make the arrests. The District Attorney's decision regarding the sufficiency of the evidence to successfully prosecute a case is a separate and distinct decision from an officer's decision to arrest based upon probable cause.

Therefore, in light of the issues raised in CCRB's investigation of this matter, Sergeant Scogmanillo will receive Training from the Police Academy in order to assist him in addressing future similar incidents.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'Cecil Wade', written over the printed name.

Cecil Wade
Deputy Chief
Commanding Officer
Police Commissioner's Office